

Sri. Bhaskar. N. D. vs Smt. Anitha Lakshmi. B. H. on 20 September, 2018

Author: B.V.Nagarathna

Bench: B.V.Nagarathna

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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 20TH DAY OF SEPTEMBER, 2018

BEFORE

THE HON'BLE MRS. JUSTICE B.V.NAGARATHNA

WRIT PETITION NO.13232/2018 (GM-FC)

BETWEEN:

SRI BHASKAR N. D.
S/O. LATE N.R. DASAPPA,
AGED ABOUT 39 YEARS,
RESIDING AT NO.148, 2ND FLOOR,
MAHADESWARA NILAYA,
1ST MAIN, MAGADI ROAD,
VISWANEEDAM POST,
BENGALURU-560 091.

... PETITIONER

(BY SMT. RAMA DEVI, ADV.)

AND:

SMT. ANITHA LAKSHMI B. H.
W/O. BHASKAR N. D.,
AGED ABOUT 31 YEARS,
RESIDING AT NO.409,
PAVANA NILAYA,
4TH CROSS, 1ST BLOCK,
PEENYA,
BENGALURU-560 058.

... RESPONDENT

THIS WRIT PETITION IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA PRAYING TO SET ASIDE

THE IMPUGNED ORDER DATED 2.2.2018 PASSED ON I.A. NO.III
IN M.C. NO. 56/2016 PASSED BY THE V ADDITIONAL PRINCIPAL
JUDGE, FAMILY COURT, BENGALURU, VIDE ANNEXURE-F.

THIS PETITION COMING ON FOR ORDERS, THIS DAY, THE
COURT MADE THE FOLLOWING:

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ORDER

Petitioner is the husband and respondent is the wife. Petitioner has filed M.C.No.56/2016 which is pending before the V Additional Principal Judge, Family Court, Bengaluru. In the said petition, respondent filed an application in I.A.No.3 under Section 24 of the Hindu Marriage Act, 1955 seeking interim maintenance. By the impugned order dated 02.02.2018, the Family Court has granted interim maintenance of Rs.5,000/- per month and litigation expenses of Rs.20,000/- to the respondent. Being aggrieved, the petitioner before the Family Court has filed this writ petition.

2. I have heard the learned counsel for petitioner.

3. Learned counsel for petitioner drew my attention to the fact that petitioner herein has filed M.C.No.56/2016 under Section 12(1)(a) of the Hindu Marriage Act, 1955 seeking a decree of nullity, as there is no consummation of marriage and the respondent is incapable of consummating the marriage. That petitioner has filed an application seeking reference of the respondent for medical examination, so as to ascertain as to whether, she is capable of consummating the marriage. The Family Court has not taken up the said application filed by petitioner, instead the Family Court has considered the application filed by respondent seeking interim maintenance of Rs.20,000/- per month and litigation expenses of Rs.50,000/- and has ordered payment of Rs.5,000/- per month as interim maintenance and Rs.20,000/- towards litigation expenses. Being aggrieved by the said order, the petitioner before the Family Court has filed this writ petition.

4. Learned counsel for petitioner further contends that the respondent is well qualified and she has the qualification to be appointed as a Teacher and that she is not prepared to earn her living. Further, the quantum of maintenance awarded to respondent is on the higher side. She submitted that petitioner has other financial commitments and the award of Rs.5,000/- per month as interim maintenance to the respondent is exorbitant. She further submitted that the petitioner is also willing for any kind of counseling but, the respondent is resisting it and is only interested in contesting the petition filed by the petitioner herein. In the circumstances, the petitioner's counsel sought for interference of this Court in the matter.

5. Having heard learned counsel for petitioner and on perusal of the material on record, I find that the parties are residing at Bengaluru. The respondent being a resident of Bengaluru and not earning any income, sought for interim maintenance by filing an application. Although, she claimed Rs.20,000/- per month as interim maintenance and Rs.50,000/- as litigation expenses, the Family Court on considering the income and other financial commitments of petitioner has ordered only Rs.5,000/- per month as the interim maintenance and Rs.20,000/- towards litigation expenses.

6. Having regard to the fact that the respondent is living in a metropolitan city i.e., Bengaluru and does not have any other source of income, award of Rs.5,000/- per month as interim maintenance in my view cannot be construed to be exorbitant or on the higher side. The said award is quite reasonable having regard to the inflationary trends in the economy. Further, award of Rs.20,000/- towards litigation expenses is also just and proper and would not call for any interference.

7. Hence, I find no merit in the writ petition. Accordingly, the writ petition is dismissed. In view of dismissal of the writ petition, I.A.No.1/2018 would not survive for consideration and is ordered to be filed.

Before parting, the Family Court is directed to take steps to order for referring the petitioner as well as the respondent to a Family Counselor preferably having a medical background either at NIMHANS, Bengaluru or to any other counseling centre. If such a direction is issued by the Family Court, petitioner and respondent to ensure that the said direction is complied with as far as practicable. One can only hope that counseling of the parties may be helpful to them, so as to resolve their differences and complications that have arisen between them and possibly, result in their reconciliation.

Sd/-

JUDGE ST